

HOUSE BILL 1458

By Clemmons

AN ACT to amend Tennessee Code Annotated, Title 49,
relative to school meals.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 49-6-2302, is amended by deleting the section and substituting instead the following:

(a) Each local school board shall establish a school lunch program and a school breakfast program that provide a free breakfast and lunch to each student enrolled in a school under the board's jurisdiction in accordance with rules promulgated under § 49-6-2303.

(b) The state shall reimburse each LEA the cost of providing a free breakfast and lunch to each student enrolled in the LEA after all federal funds available pursuant to the national school lunch program created by the National School Lunch Act (42 U.S.C. §§ 1751-1769), the school breakfast program created by the Child Nutrition Act of 1966 (42 U.S.C. §§ 1771-1789), or another federal program have been applied.

SECTION 2. Tennessee Code Annotated, Section 49-6-2303, is amended by deleting the language ", regardless of its participation" in subdivision (5) and by deleting subdivision (10).

SECTION 3. This act takes effect July 1, 2026, the public welfare requiring it, and applies to the 2026-2027 school year and each school year thereafter.